

Module V

Basic Concepts, Responsibilities and Rights of Professionals, Global Issues and Ethical Codes

Professional ethics

Professional ethics are principles that govern the behaviour of a person or group in a business environment. Like values, professional ethics provide rules on how a person should act towards other people and institutions in such an environment.

Ethical principles (Terminology)

- Honesty
- Trustworthiness
- Loyalty
- Respect for others
- Adherence to the law
- Doing good and avoiding harm to others
- Accountability.

Codes of conduct

- The intention of codes of conduct is to provide guidelines for the minimum standard of appropriate behaviour in a professional context.
- Codes of conduct sit alongside the general law of the land and the personal values of members of the profession.

Professional codes of conduct provide benefits to:

- The public, as they build confidence in the profession's trustworthiness.
- Clients, as they provide greater transparency and certainty about how their affairs will be handled
- Members of the profession, as they provide a supporting framework for resisting pressure to act inappropriately, and for making acceptable decisions in what may be 'grey areas'
- The profession as a whole, as they provide a common understanding of acceptable practice which builds collegiality and allows for fairer disciplinary procedures
- Others dealing with the profession, as the profession will be seen as more reliable and easier to deal with.

What is governance ethics?

- Ethical governance is a set of procedures, processes, cultures, and values that ensures just and fair decision-making.

- Key values of ethical governance are integrity, fairness, leadership, honesty, accountability, teamwork, charity/kindness, and loyalty.

The two main goals involved in ethics :

- The ability to discern right from wrong
- The commitment to act on a decision.

Personal ethics

Personal ethics refers to the ethics that a person identifies with in respect to people and situations that they deal with in everyday life.

Example: Integrity, selflessness, honesty, loyalty, equality, fairness, empathy, respect, and self-respect.

Professional ethics

Professional ethics refers to the ethics that a person must adhere to in respect of their interactions and business dealings in their professional life.

Example: honesty, trustworthiness, transparency, accountability, confidentiality, objectivity, respect, obedience to the law, and loyalty.

What is an Ethical Dilemma?

- An ethical dilemma (ethical paradox or moral dilemma) is a problem in the decision-making process between two possible options, neither of which is absolutely acceptable from an ethical perspective.
- Although we face many ethical and moral problems in our lives, most of them come with relatively straightforward solutions.

Approaches to solve an ethical dilemma

Refute the paradox (dilemma): The situation must be carefully analyzed and can be logically refuted.

Value theory approach: Choose the alternative that offers the greater good or the lesser evil.

Find alternative solutions: In some cases, the problem can be reconsidered, and new alternative solutions may arise.

Some examples of ethical dilemma include:

- Taking credit for others' work
- Offering a client a worse product for your own profit
- Utilizing inside knowledge for your own profit

What is emotional intelligence (EQ)?

- Emotional intelligence (also known as emotional quotient or EQ) is the ability to understand, use, and manage your own emotions in positive ways to relieve stress, communicate effectively, empathize with others, overcome challenges and defuse conflict.
- Emotional intelligence helps you build stronger relationships, succeed at school and work, and achieve your career and personal goals.
- It can also help you to connect with your feelings, turn intention into action, and make informed decisions about what matters most to you.

Importance of emotional intelligence (EQ)

- Performance at school or work.
- Physical health
- Mental health
- Relationships
- Social intelligence

Four key skills to build EQ

- Self-management
- Self-awareness
- Social-awareness
- Relationship management

Thoughts on Ethics

Ethical thinking is the process of identifying and describing ethical issues in a variety of contexts, articulating the ethical considerations involved in different responses to those issues, and providing a rationale for a position that addresses those considerations.

Value education

- Value education provides a moral compass that guides candidates in making ethical decisions.
- It helps them understand and apply principles such as honesty, integrity, empathy, and fairness when addressing ethical dilemmas presented in the exam.
- Value education can also help individuals make ethical decisions and act with integrity in different situations.
- By promoting values such as justice, fairness, and accountability, individuals can learn to make decisions that are not only in their own interest but also in the interest of others.

Dimensions of Ethics

Questions of human morality concerning good and evil, virtues and vices, fairness and injustice and other related issues are addressed by four primary facets of ethics, which are called the Dimensions of Ethics.

There are four major dimensions of ethics:

Normative or Prescriptive Ethics

Descriptive Ethics

Meta-ethics

Applied Ethics

Meta-ethics

- Meta-Ethics is concerned with the problems that determine whether a given subject or item is morally right or morally wrong.
- It inquires about our comprehension– how we perceive whether a decision, action, or purpose is good or negative.

Normative or Prescriptive ethics

- It is the study of ethical beliefs that govern how individuals should act and behave in society. Furthermore, it investigates norms for the righteousness and wrongfulness of the conduct.
- If someone violates set norms, there are grounds for punishment as well as an explanation for doing so.

Descriptive Ethics

- This dimension of ethics is on the less intellectual end of the ethical spectrum.
- It gathers knowledge on how people live, observes patterns of events that arise in their surroundings, and draws broad judgments based on these observations.

Applied Ethics

- This is the theme of ethics that is used in everyday life in a variety of domains of work and living.
- It is concerned with the philosophical investigation of specific moral dilemmas in private and public life including moral judgements.
- It uses the conceptual tools of meta-ethics and normative ethics to investigate specific difficult subjects such as abortion, infanticide, animal rights, environmental concerns, homosexuality, capital punishment, nuclear weapons and so on.

Professional goals

- Professional goals are anything you hope to achieve during your career, including skills, milestones, career changes or salaries.
- They also can be goals you wish to accomplish personally or to help your company and/or industry achieve.

Setting goals in professional life

- Expand your professional network
- Make clear goals
- Smart goals
- Write smarter career goals
- Communication
- Become a mentor
- Earn a degree
- Earn a certification
- Gain leadership experience
- Monitor progress
- Personal goals
- Pursue a different career
- Advance in your company
- Analyze your skills
- Ask for feedback
- Develop strategic planning skills
- Enhance customer service skills
- Gain a new skill
- Improve your collaboration skills
- Increasing earnings
- Learn a new technology
- Master time management
- Tie actions to each goal
- Assess your current position

Responsibilities and Rights of Professionals

- Professional responsibility is a set of duties within the concept of professional ethics for those who exercise a unique set of knowledge and skill as professionals.
- Professional responsibility applies to those professionals making judgments, applying their unique skills, and reaching informed decisions for, or on behalf, of others, as professionals.
- Professionals must be seen to exercise due care and responsibility in their areas of specialisation – known as professions.

Common Competencies of Professional Responsibility

- **Honesty** - being trustworthy, loyal, sincere, and fair
- **Integrity**- consistency between actions, values, expectations, and outcomes
- **Transparency** - operating where others can see what actions are performed
- **Accountability** - taking responsibility for actions and their outcomes wherever due
- **Objectivity** - having a well-informed unbiased view on practical matters
- **Respectfulness** - treating colleagues and clients with care and compassion
- **Obedience to the law** – adhering to regulatory and governmental guidelines

Common violations in the legal field :

Conflicts of interest. This occurs where the same lawyer or firm is representing both sides in a lawsuit, or previously represented one side. In countries with the adversarial system of justice, a conflict of interest violates the right of each client to the undivided, zealous loyalty of his lawyer. Conflicts may also occur if the lawyer's ability to represent a client is materially limited by the lawyer's loyalty to another client, a personal relationship, or other reasons.

Incompetent representation. Attorneys have a duty to provide competent representation, and the failure to observe deadlines or conduct thorough research is considered a breach of ethics.

Mishandling of client money. Clients often advance money to lawyers for a variety of reasons. The money must be kept in special client trust accounts until it is actually earned by the lawyer or spent on court fees or other expenses.

Fee-splitting arrangements. Attorneys may not split fees with non-attorneys, or with other attorneys who have not worked on the matter for which the client is represented.

Disclosure of confidential information. Lawyers are under a strict duty of confidentiality to keep information received in the course of their representations secret. Absent law to the contrary, lawyers may not reveal or use this information to the detriment of their clients.

Communication with represented parties. An attorney may not communicate directly with a person who they know to be represented by counsel with respect to a matter for which the attorney is seeking to communicate. For example, in a civil suit, the plaintiff's attorney may not speak to the defendant directly if the attorney knows that the defendant is represented by counsel without their attorney's express consent.

Proper solicitation and advertising. Attorneys generally may solicit business by personally offering their services to potential clients who are not already close friends or family members. Advertising by attorneys is also strictly regulated, to prevent puffery and other misleading assertions regarding potential results.

Professional Rights

The rights that engineers have as professionals are called Professional Rights.

These professional rights include –

- The basic right of professional conscience.
- The right of conscientious refusal.
- The right of professional recognition.

Right of Professional Conscience

- This is a basic right which explains that the decisions taken while carrying on with the duty, where they are taken in moral and ethical manner, cannot be opposed.
- The right of professional conscience is the moral right to exercise professional judgement in pursuing professional responsibilities.
- It requires autonomous moral judgement in trying to uncover the most morally reasonable courses of action, and the correct courses of action are not always obvious. There are two general ways to justify the basic right of professional conscience.
- The exercise of moral reflection and conscience that justifies professional duties is necessary, with respect to that duty.
- The general duties to respect persons and rule-utilitarianism would accent the public good of allowing engineers to pursue their professional duties.

Right of Conscientious Refusal

- The right of conscientious refusal is the right to refuse to engage in unethical behavior.
- This can be done solely because it feels unethical to the doer.
- This action might bring conflicts within the authority-based relationships.
- The two main situations to be considered here are –
 - When it is already stated that certain act is unethical in a widely shared agreement among all the employees.
 - When there occurs disagreement among considerable number of people whether the act is unethical.
- Hence it is understood that engineers and other professionals have a moral right to refuse the unethical acts such as bribery, forging documents, altering test results, lying, padding payrolls or coercing employees into acting by threatening, etc.

Right to Professional Recognition

- An engineer has a right to the recognition of one's work and accomplishments. An engineer also has right to speak about the work one does by maintaining confidentiality and can receive external recognition.

- The right for internal recognition which includes patents, promotions, raises etc. along with a fair remuneration, are also a part of it.
- The fulfillment of right to recognition motivates the employee to be a trustful member of the organization, which also benefits the employer.
- This makes the employee morally bound which enhances the ethical nature to be abide by the professional ethics'

Employee Rights

Privacy: The right to privacy refers to the right of having a private life, off the job. It is the right to control the access to and the use of information about oneself.

Equal Opportunity – Non-discrimination : The demeaning of a person based on trivial factors such as one's sex, race, skin color, age or political or religious outlook can be understood as Discrimination.

Equal Opportunity – Sexual Harassment : In today's world, there is an increase in the number of sexual harassment cases across the world.

Equal opportunity – Affirmative Action : Affirmative action refers to the preference given to a person or a group who was denied equal importance in the past.

Environmental ethics

Environmental ethics is a branch of applied philosophy that studies the conceptual foundations of environmental values as well as more concrete Issues surrounding societal attitudes, actions, and policies to protect and sustain biodiversity and ecological systems.

Computer ethics

- Computer ethics is the set of commonly agreed principles that govern the use of computers.
- Computer ethics is essentially a set of philosophical guidelines or moral standards that aim to influence behaviour and prevent harm.
- While computer ethics work to ward off technology misuse by computer scientists, programmers, and other decision-making individuals within the field, they can also help to steer social conduct and user interactions when using computer systems – particularly where the internet is concerned.

Computer ethics: common concerns and considerations

Cyber crime:

- Cybercrime is a threat that evolves as rapidly as new technology does.
- Through hacking, malware, viruses, worms, phishing, Trojan horses, and so on.
- cybercriminals and hackers can steal money and data, commit fraud, traffic in illegal content and intellectual property, and commit identity theft.

Privacy and security:

- Digital security, anonymity, information ethics, and information privacy online can be hugely important to people.
- However, threats abound, from companies secretly tracking – and selling –
- online activity, to individual people cyberbullying and doxing other people.

Intellectual property

Theft or the unauthorised distribution of digital content, copyrighted content, and intellectual property is an ongoing issue online, with everything from art and entertainment media to software and innovative products shared illegally online.

The Ten Commandments of Computer Ethics

- You shall not use a computer to harm other people.
- You shall not interfere with other people's computer work.
- You shall not snoop around in other people's computer files.
- You shall not use a computer to steal.
- You shall not use a computer to bear false witness.
- You shall not copy or use proprietary software for which you have not paid (without permission).
- You shall not use other people's computer resources without authorisation or proper compensation.
- You shall not appropriate other people's intellectual output.
- You shall think about the social consequences of the program you are writing or the system you are designing.
- You shall always use a computer in ways that ensure consideration and respect for other humans.

Research ethics

Research ethics involves the application of fundamental ethical principles to research activities which include the design and implementation of research, respect towards society and others, the use of resources and research outputs, scientific misconduct and the regulation of research.

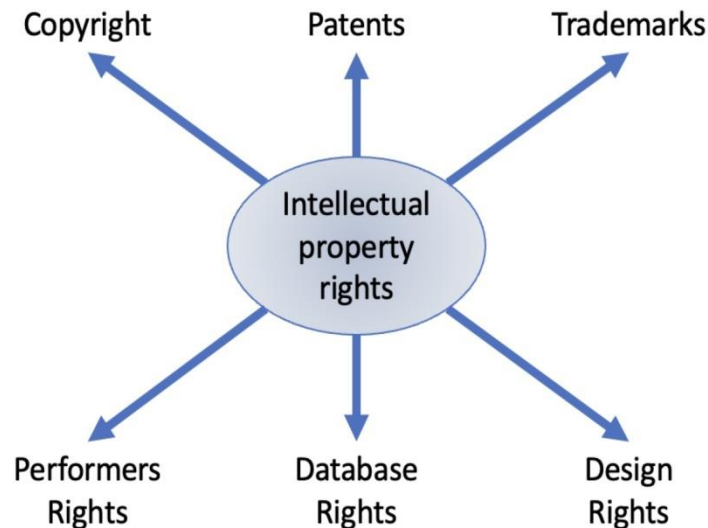
Six key principles of research ethics

- Research should aim to maximise benefit for individuals and society and minimise risk and harm.
- The rights and dignity of individuals and groups should be respected
- Wherever possible, participation should be voluntary and appropriately informed
- Research should be conducted with integrity and transparency
- Lines of responsibility and accountability should be clearly defined

- Independence of research should be maintained and where conflicts of interest cannot be avoided they should be made explicit.

What are intellectual property rights?

Intellectual property rights are the rights given to persons over the creations of their minds. They usually give the creator an exclusive right over the use of his/her creation for a certain period of time.



Why do we need IPR?

- Intellectual property rights (IPR) are the legal privileges granted to the inventor or creator to safeguard their work for a specific period of time.
- These legal rights grant the inventor or creator, or his assignee, the sole right to fully exploit their invention or creation for a specific amount of time.

What is the objective of IPR?

- 1) It helps in protecting the ownership and originality of the individuals' creation.
- 2) It provides recognition to the concerned person or authority.
- 3) It allows owners of intellectual property to have financial benefits from the property they have created.

Sample code of computer society of India (CSI)

A member of the Computer Society of India (CSI) shall :

- Organise the resources available to him and optimise these in attaining the objectives of his organisation.
- Not misuse his authority or office for personal gains.

- Comply with the Indian laws relating to the management of his organisation and operate within the spirit of these laws.
- Conduct his affairs so as to uphold, project and further the image and reputation of the CSI.
- Maintain integrity in research and publications.

As regards his ORGANISATION CSI member should :

- Act with integrity in carrying out the lawful policy and instructions of his organisation and uphold its image and reputation.
- Plan, establish and review objectives and tasks for himself and his subordinates which are compatible with the Codes of practice of other professionals in the enterprise, and direct all available effort towards the success of the enterprise rather than of himself.
- Fully respect the confidentiality of information which comes to him in the course of his duties, and not use confidential information for personal gain or in a manner which may be detrimental to this organisation or his clients.
- Not snoop around in other people's computer files.
- In his contacts and dealings with other people, demonstrate his personal integrity and humanity and when called to give an opinion in his professional capacity, shall, to the best of his ability, give an opinion that is objective and reliable.

As regards the EMPLOYEES, CSI member should :

- Set an example to his subordinates through his own work and performance, through his leadership and by taking account of the needs and problems of his subordinates.
- Develop people under him to become qualified for higher duties.
- Pay proper regard to the safety and well being of the personnel for whom he is responsible.
- Share his experience with fellow professionals.

As regards the CLIENTS, CSI member should :

- Ensure that the terms of all contracts and terms of business be stated clearly and unambiguously.
- Not use the computer to harm other people or to bear false witness.
- Be objective and impartial when giving independent advice.

As regards the COMMUNITY, CSI member should :

- Make the most effective use of all natural resources employed.
- Be ready to give professional assistance in community affairs.
- Not appropriate other people's intellectual output.
- Always use a computer in ways that ensure consideration and respect for fellow humans.
